

24CV00460 Tiburcio v. Velazquez

County: santa-barbara

Division: Minor/Disabled Person's Compromise

Department: 2 SM-Cook

Hearing date: 2026-05-26

Motion: Minor's Compromise

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/24cv00460>

Source SHA-256: e926ab090d309502bda80b7418156a3c9db27102a426fa6f70484c5bcb5922c5

Tentative Ruling: Tiburcio v. Velazquez

Case Number

24CV00460

Case Type

Minor/Disabled Person's Compromise

Hearing Date / Time

Tue, 05/26/2026 - 09:00

Nature of Proceedings

Minor's Compromise

Tentative Ruling

Probate Notes:

The following deficiencies with the petition must be rectified.

Unauthorized Pseudonym. Code of Civil Procedure section 367 states:

Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.

There does not appear to be any reason why the minor in this case is listed as a "Doe" in the pleadings. Petitioner must amend the petition to contain the full name of the minor and relationship to the Guardian ad litem, or provide authority to the

Court for listing the minor under a pseudonym.

Medical Records re: Recovery. Adequate documentation that the minor has fully recovered, or is expected to fully recover from the injuries. The attachments supporting the allegation at paragraph 9 of the petition do not support a finding that the minor will fully recover. Please note: It is insufficient to attach the initial medical records. The Court needs confirmation of a full recovery, thus current, recent records showing minor suffers no symptoms from the original injury are required

Proof of Insolvency. Adequate evidence of sufficient investigation into the solvency of the settling defendant above the policy limits of the settling insurance company must be submitted. There are no facts alleged that defendant cannot meet a judgment past the policy limits, and evidence on file shows the injury may be more severe than the amount of the settlement will compensate for.

Ahlborn Motion or Reduction in Medi-Cal lien. According to SCOTUS, DHCS violates federal law when it places a statutory lien on any amount of a settlement or judgment above an amount specifically designated as reimbursement for medical costs. (Arkansas Dept. of Health and Human Services v. Ahlborn (2006) 547 U.S. 268, 272.) Thus, according to California cases decided after Ahlborn, DHCS cannot seek full reimbursement for Medi-Cal payments made for medical care required to treat injuries caused by a third-party tortfeasor, unless the recipient of the medical care recovers the full value of their tort claim. (See e.g. Lopez v. Daimler Chrysler Corp. (2009) 179 Cal.App.4th 1373, 1378; Lima v. Vouis (2009) 174 Cal.App.4th 242, 260; Bolanos v. Superior Court (2008) 169 Cal.App.4th 744, 748.) Thus in a settlement, DHCS's recovery is limited to a percentage of the portion of the settlement apportioned for reimbursement of payments made for medical care, equivalent to the percent the settlement is to the value of the full claim amount:

Expressed mathematically, the Ahlborn formula calculates the reimbursement due as the total settlement divided by the full value of the claim, which is then multiplied by the value of benefits provided. (Reimbursement Due = [Total Settlement ÷ Full Value of Claim] × Value of Benefits Provided.)

(Aguilera v. Loma Linda University Medical Center (2015) 235 Cal.App.4th 821, 828.)

If such deficiencies are adequately addressed prior to the hearing, the court may sign the Order Approving Compromise and vacate the hearing date.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US